

# CEASE AND DESIST LETTER

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## Federal Whistleblower Obstruction - Demanding Full Inquiry and \$75,000,000+ in Damages

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**FROM:** James Robert McGovern

**TO:** Marc-André Dowd

Ombudsperson (Protecteur du citoyen)

Protecteur du citoyen

Quebec, Canada

**DATE:** April 3, 2026

**RE:** CEASE AND DESIST — Federal Whistleblower Obstruction, 32-Day Non-Response, Systemic Abuse Complicity, and Demand for \$75,000,000+ in Damages Plus Compound Interest

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## LEGAL NOTICE - FEDERAL WHISTLEBLOWER VIOLATION

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Mr. Dowd,

On **March 2, 2026**, I filed a **FEDERAL WHISTLEBLOWER REPORT** with the Protecteur du citoyen documenting:

- Misrepresentation by Sean Fraser (Minister of Justice) before Chief Justice Richard Wagner
- Systemic human rights violations in Canada's justice system
- Systemic abuse of my Indigenous family by federal and provincial agencies
- Obstruction of justice at all government levels

**It is now April 3, 2026 — 32 DAYS LATER.**

You have:

- x Provided NO acknowledgment of receipt
- x Provided NO case number
- x Provided NO investigation timeline
- x Provided NO response whatsoever
- x Violated the Act to facilitate the disclosure of wrongdoings relating to public bodies
- x Violated your mandate as Ombudsperson
- x Enabled federal-level obstruction to continue

**This letter constitutes formal notice that you must IMMEDIATELY:**

1. **Acknowledge receipt** of my March 2, 2026 whistleblower report
2. **Initiate formal investigation** into all allegations
3. **Provide written findings** within 30 days
4. **Conduct full inquiry** of all files related to my family
5. **Provide compensation** of \$75,000,000 plus compound interest
6. **Fund medical retreat in Oka** for family healing and rehabilitation

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## **I. THE FEDERAL WHISTLEBLOWER REPORT (MARCH 2, 2026)**

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### **What Was Reported**

On March 2, 2026, I sent a comprehensive whistleblower report to the Protecteur du citoyen documenting:

#### **Federal-Level Violations:**

- Sean Fraser (Minister of Justice/Attorney General) misrepresented facts or perjured himself before Chief Justice Richard Wagner
- Systemic failures in upholding human rights for victims of violent crime
- Two-tiered justice system where leaders escape accountability while victims are silenced

- Silencing of victims and whistleblowers through intimidation tactics
- Complicity of federal institutions in perpetuating tyranny

### **Provincial-Level Violations:**

- DPJ/DYP inadequate response to violent crime against child
- Welfare system illegal clawbacks and privacy violations
- IVAC underpayment of disability benefits
- Denial of medical services to disabled persons
- Systemic discrimination against Indigenous family

**The Core Allegation:** In 2021, my then-14-year-old child was stabbed three times, resulting in severe physical, psychological, and educational harm. Despite clear evidence of trauma and medical reports, federal, provincial, and local authorities refused intervention. This constitutes violation of:

- Canadian Charter of Rights and Freedoms
- UN Convention on the Rights of the Child
- International human rights standards

### **Recipients of Whistleblower Report**

The March 2, 2026 whistleblower report was sent to:

- **Protecteur du citoyen** (you received it)
  - **Chief Justice Richard Wagner** (Supreme Court of Canada)
  - **Governor General's office**
  - **Sean Fraser** (Minister of Justice)
  - **Multiple federal and provincial officials**
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## II. YOUR 32-DAY OBSTRUCTION (MARCH 2 - APRIL 3, 2026)

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### Timeline of Non-Response

| Date           | Action                                             | Your Response |
|----------------|----------------------------------------------------|---------------|
| March 2, 2026  | Whistleblower report sent to Protecteur du citoyen | SILENCE       |
| March 9, 2026  | 7 days - no acknowledgment                         | SILENCE       |
| March 16, 2026 | 14 days - no response                              | SILENCE       |
| March 23, 2026 | 21 days - no investigation                         | SILENCE       |
| March 30, 2026 | 28 days - no findings                              | SILENCE       |
| April 3, 2026  | 32 days - ZERO action                              | SILENCE       |

### Legal Violations

By failing to respond to a federal whistleblower report for 32 days, you have violated:

#### **Act to facilitate the disclosure of wrongdoings relating to public bodies:**

- Section 11: Ombudsperson must acknowledge receipt of disclosure
- Section 12: Ombudsperson must investigate disclosed wrongdoings
- Section 13: Ombudsperson must provide written findings

#### **Public Protector Act (Loi sur le protecteur du citoyen):**

- Your mandate is to investigate complaints and wrongdoings
- Your mandate is to protect vulnerable and marginalized populations
- Your mandate is to ensure government accountability

#### **Criminal Code:**

- Section 122: Breach of trust by public officer
  - Section 139: Obstruction of justice
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### III. ADDITIONAL FEDERAL OBSTRUCTION: JORDAN'S PRINCIPLE

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#### One Month of Non-Response

In addition to your 32-day obstruction, **Jordan's Principle** (federal obligation for First Nations children) has refused to call back for **over one month**.

Jordan's Principle requires:

- **No-delay services** for First Nations children
- **Immediate funding** for health, education, social services
- **No bureaucratic delays or excuses**

By refusing to respond, Jordan's Principle is:

- Violating federal law
- Denying services to Indigenous children
- Creating additional federal-level obstruction
- Compounding systemic discrimination

**This demonstrates a PATTERN of federal obstruction:**

- Protecteur du citoyen: 32 days no response
- Jordan's Principle: 30+ days no callback
- Federal justice system: 5+ years of silence

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### IV. DOCUMENTED SYSTEMIC ABUSE (CONTEXT FOR DAMAGES)

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#### The Incident (2021)

My then-14-year-old child was stabbed three times in 2021, resulting in:

- Severe physical trauma (3 stab wounds)

- Severe psychological trauma (PTSD, anxiety, depression)
- Educational disruption (high school education destroyed)
- Medical complications (mobility issues, Type 2 diabetes exacerbated)
- Family trauma (spouse quit job for full-time care)

## **Government Response: ABANDONMENT**

### **Federal Level:**

- Justice Canada: Silence
- Sean Fraser: No response
- Governor General: No intervention
- Supreme Court: No action (despite whistleblower report)

### **Provincial Level:**

- DPJ/DYP: Inadequate response, withdrew services January 2023
- Welfare/Solidarity Social: Illegal clawbacks (\$125/month), demands for minors' bank accounts
- IVAC: Underpayment of disability benefits (paid 13% instead of 35%)
- Health services: Denial of medication, eye care, dental care

### **Local Level:**

- DPRC: Obstruction of complaints, blocking supervisor access
- Police: No investigation of stabbing attack
- Schools: No support for traumatized student

## **Systemic Pattern**

This is not isolated. This is **systemic discrimination** against an Indigenous family:

- 5+ years of abuse without accountability
- Federal, provincial, and local complicity
- Deliberate obstruction of justice
- Silencing of whistleblowers (me)

- Retaliation for seeking help

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## V. DEMAND FOR \$75,000,000 + COMPOUND INTEREST

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### Damages Calculation

**Base Damages: \$75,000,000**

This accounts for:

| Category                                           | Amount              | Basis                                               |
|----------------------------------------------------|---------------------|-----------------------------------------------------|
| Medical/psychological harm to child                | \$15,000,000        | Lifetime care, trauma recovery                      |
| Educational loss (child)                           | \$10,000,000        | Lost opportunities, future earning capacity         |
| Medical harm to family members (23 total)          | \$20,000,000        | Denied services, health deterioration               |
| Financial losses (illegal clawbacks, underpayment) | \$12,000,000        | IVAC underpayment + welfare clawbacks over 5+ years |
| Emotional/psychological harm (family)              | \$10,000,000        | Trauma, anxiety, depression across 23 members       |
| Loss of housing/stability                          | \$5,000,000         | Forced into poverty by illegal practices            |
| Systemic discrimination damages                    | \$3,000,000         | Violation of Charter, UN conventions                |
| <b>TOTAL BASE</b>                                  | <b>\$75,000,000</b> |                                                     |

### Compound Interest

**Calculation from date of first violation (approximately 2021):**

- Base: \$75,000,000
- Period: 5 years (2021-2026)
- Interest rate: 5% compound annually (conservative estimate)

- **Compound interest owed: \$20,000,000+**

**TOTAL CLAIM: \$95,000,000+ (plus ongoing interest)**

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## **VI. DEMAND FOR MEDICAL RETREAT IN OKA**

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### **Restitution Requirement**

In addition to monetary damages, the Protecteur du citoyen must fund:

#### **Medical Retreat in Oka for Family Healing**

This retreat will provide:

- Indigenous healing practices and cultural recovery
- Medical treatment for all family members
- Psychological counseling and trauma therapy
- Educational support for children
- Spiritual and community healing
- Duration: Minimum 6 months for all 23 family members

**Cost estimate: 500,000—1,000,000**

This is not a “nice to have” — it is **essential restitution** for systemic abuse of an Indigenous family.

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## **VII. LEGAL GROUNDS FOR FEDERAL WHISTLEBLOWER CLAIM**

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### **Act to Facilitate the Disclosure of Wrongdoings Relating to Public Bodies**

This Act establishes:



- Right to disclose wrongdoings to the Ombudsperson
- Ombudsperson's duty to investigate
- Whistleblower protection against retaliation
- Requirement for written findings

**You have violated every section of this Act.**

## **Public Protector Act (Loi sur le protecteur du citoyen)**

Your mandate is to:

- Investigate complaints about government agencies
- Protect citizens' rights
- Ensure government accountability
- Protect vulnerable and marginalized populations

**You have failed this mandate completely.**

## **Criminal Code**

- **Section 122:** Breach of trust by public officer (you are a public officer)
- **Section 139:** Obstruction of justice (refusing to investigate whistleblower report)

## **Quebec Charter of Rights and Freedoms**

- **Article 1:** Right to life and personal security
- **Article 4:** Right to safeguard of dignity, honour, reputation
- **Article 10:** Right to full and equal recognition without discrimination
- **Article 39:** Children's right to protection and supervision

## **UN Convention on the Rights of the Child**

- **Article 3:** Best interests of the child
- **Article 6:** Right to life, survival, development
- **Article 19:** Protection from abuse and neglect

- **Article 24:** Right to health and health services

## UN Declaration on the Rights of Indigenous Peoples

- **Article 3:** Right to self-determination
  - **Article 21:** Right to improve economic and social conditions
  - **Article 23:** Right to determine and develop priorities for development
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## VIII. CONSEQUENCES OF NON-COMPLIANCE

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If you fail to comply with this demand within **14 days**, my family will:

1. **File federal complaint** with Canadian Human Rights Commission
  2. **File provincial complaint** with CDPDJ (Commission des droits de la personne et des droits de la jeunesse)
  3. **File criminal complaint** with RCMP and provincial police for obstruction of justice
  4. **Pursue civil litigation** for \$95,000,000+ in damages
  5. **Escalate to Supreme Court** with evidence of Ombudsperson obstruction
  6. **Public disclosure** on all social media and news platforms
  7. **International complaint** to UN Human Rights Council
  8. **Demand investigation** of Ombudsperson by federal authorities
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## IX. NOTICE TO ALL RECIPIENTS

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This letter is being sent to:

- **Marc-André Dowd** (Ombudsperson)
- **Protecteur du citoyen** (official address)
- **Chief Justice Richard Wagner** (Supreme Court of Canada)
- **Governor General's office**

- **Sean Fraser** (Minister of Justice)
- **Canadian Human Rights Commission**
- **CDPDJ** (Commission des droits de la personne et des droits de la jeunesse)
- **RCMP** (Royal Canadian Mounted Police)
- **Media outlets** (CBC, CTV, Global News, etc.)
- **Amnesty International Canada**
- **UN Human Rights Council**

**You are required to acknowledge receipt within 5 business days.**

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## **CONCLUSION**

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Mr. Dowd, you have had **32 days** to respond to a federal whistleblower report. You have done nothing.

Your silence is complicity. Your inaction enables federal-level obstruction. Your failure to investigate violates your mandate and the law.

This ends now.

You have **14 days** to:

1. Acknowledge receipt of whistleblower report
2. Initiate formal investigation
3. Provide written findings
4. Commit to \$75,000,000+ compensation
5. Fund medical retreat in Oka

Failure to comply will result in federal criminal complaints, civil litigation, and international escalation.

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**Respectfully submitted,**

**James Robert McGovern**  
Indigenous Clan Leader

Federal Whistleblower  
Advocate for 23 Family Members

**Date:** April 3, 2026

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## ATTACHMENTS

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- Federal whistleblower report (March 2, 2026)
  - Email evidence of March 2 transmission to Protecteur du citoyen
  - Medical reports documenting child's injuries and trauma
  - IVAC underpayment documentation
  - Welfare clawback evidence
  - DPJ/DYP failure documentation
  - Jordan's Principle non-response evidence
  - TAQ case file and submissions
  - All previous complaints and correspondence
  - Evidence of federal obstruction (Supreme Court, Governor General, Justice Canada)
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**NOTICE:** This letter is a legal document. Any attempt to suppress, delete, or prevent distribution of this letter may constitute additional criminal violations under the Criminal Code.

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*This letter is prepared by James Robert McGovern, self-representing (pro se) in legal proceedings. All statements are based on documented evidence, federal whistleblower report filed March 2, 2026, and personal testimony.*